ORDINANCE 540

AN ORDINANCE CALLING AN ELECTION IN THE CITY OF RECTOR, ARKANSAS ON THE QUESTION OF MOSQUITO REDUCTION FEE PROGRAM IN ORDER FOR THE LIVING CONDITIONS TO IMPROVE FOR THE CITIZENS OF THE CITY OF RECTOR; AND PRESCRIBING OTHER MATTERS PERTAINING THERETO;

WHEREAS, the City Council of the City of Rector, Arkansas (the "City") is seeking to introduce the following measure on the November 2nd 2010 Ballot for the City of Rector; and

WHEREAS, a Mosquito Reduction Fee Program would improve the life of the Citizens of the City of Rector

WHEREAS, a Mosquito Reduction Fee Program would be collected on the Citizens of Rector's monthly billing water statement; and

WHEREAS, a Mosquito Reduction Fee Program would apply to all Residential Households located within the City of Rector; and

WHEREAS, the purpose of this Ordinance is an election on the question of placing a Mosquito Fee on the November 2nd 2010 ballot;

NOW THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas:

Section 1. There is hereby called to be decided on the ballot at the election, to be held on November 2, 2010, at which election there shall be submitted to the electors of the City the question of the fee of Mosquito Spraying.

Section 2. The question of placing a Mosquito Fee on the water bill shall be placed on the ballot for the election in substantially the following form:

Vote on measure by placing an "X" in the square opposite the measure either for or against:

CITY OF RECTOR, ARKANSAS
MOSQUITO FEE

The fee described below is a separate fee from the water bill described above.

FOR adoption of a Mosquito Fee $3.00 per month for

Residential Households within the City Limits of City of Rector, Arkansas

AGAINST adoption of a Mosquito Fee of $3.00 per month for Residential Households within the City Limits of City of Rector, Arkansas

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Section 3. The Mosquito Fee shall be collected only on the water department monthly billing statement.

Section 4. The fees provided herein shall be collected in such a manner as the City Council may from time to time prescribe. The City Council may eliminate the fee or increase the amount, but in not greater amount than 10% in any given year due to an increase in expenses. Such can only be done by ordinance. In the event any fee is not paid promptly when due, a penalty of One Dollar ($1.00) for each delinquent fee is levied. When any fee levied is delinquent for more than sixty (60) days, the city is authorized to institute civil suit for the recovery of the fee. (in addition to the Council action above) with any penalties and court costs.

Section 5. The fees collected under the authority of this chapter shall be used only in paying expenses of the Mosquito Reduction Program and shall be segregated into a separate fund for insect control, to be paid out only for chemicals, expenses of application, and for labor and other expenses, such as equipment, connected with insect control.

Section 6. The election shall be held and conducted and the vote canvassed and the results declared under the law and in the manner now provided for municipal elections unless otherwise provided in Title 26, Chapter 75, Subchapter 2 of the Arkansas Code of 1987 Annotated (the "Authorizing Legislation") and only qualified voters of the City shall have the right to vote at the election.

Section 7. The results of the election shall be proclaimed by the Mayor, and his Proclamation shall be published one time in a newspaper published in the City and having a general circulation therein, which Proclamation shall advise that the results as proclaimed shall be conclusive unless attacked in the courts within thirty days after the date of publication.

Section 8. A copy of this Ordinance shall be given to the Clay County Board of Election Commissioners so that the necessary election officials and supplies may be provided.

Section 9. The Mayor and City Clerk, for and on behalf of the City, be,

and they are hereby authorized and directed to do any and all things necessary to call and hold the election as herein provided and, if the Mosquito Fee is approved by the electors, to cause the fee to be collected in accordance with the Authorizing Legislation, and to perform all acts of whatever nature. necessary to carry out the authority conferred by this Ordinance.

PASSED: July 12, 2010

APPROVED: Ronald E. Kemp
Ronald E. Kemp, Mayor

ATTEST: Lowell D. McKenney
Lowell D. McKenney, Recorder/Treasurer